

PORTFOLIO COMMITTEE ON JUSTICE LEGAL AND PARLIAMENTARY AFFAIRS

REPORT

ON THE PRISONS AND CORRECTIONAL SERVICE BILL [H.B. 6, 2022]

FIFTH SESSION - 9TH PARLIAMENT

March 2023

1.0.Introduction

Public participation and involvement in law-making processes remains a central mandate of Parliament and complies with its vision of a *"... people-driven"* Parliament. In fulfillment of its constitutional obligation, Parliament, through the Portfolio Committee on Justice, Legal and Parliamentary Affairs conducted public consultations on the Prisons and Correctional Service Bill to gather the views and opinions of the people, from the 20th to the 25th of February 2023. The Bill which was gazetted on the 7th of October 2022 seeks to repeal the Prisons Act (Chapter 7.11) and replace it with a new Act which is in line with the provisions of the Constitution.

2.0.Background to the Bill

The Prisons Act [Chapter 7:11] was enacted into law on 23 April 1956 and was last amended in 2004. This piece of legislation, dating back to the mid-1950s is clearly inadequate and out of sync with the international norms and standards relating to the prison administration, which is now more on restorative justice as opposed to punishment of offenders. The broadening of the scope of the Zimbabwe Prisons and Correctional Service mandate necessitated the review of the current Act to ensure that the legislation is in sync with the Constitution. Among other things, the Bill proposes the establishment of the Prisons and Correctional Service, Prisons and Correctional Service Commission that will determine how the Service is run, modernization of prisons and correctional facilities to ensure that they meet international norms and standards and a prison system that caters for the needs of vulnerable groups, such as pregnant women, juvenile offenders, persons with disabilities, and other special categories that have special needs.

3.0.Methodology

The Committee was split into two teams covering all the country's 10 provinces spread over 19 venues. Team A covered Mashonaland West, Midlands, Bulawayo, Matabeleland North and Matabeleland South while Team B covered Mashonaland Central, Harare, Mashonaland East, Manicaland and Masvingo. The Committee considered submissions received from the public consultations in addition to written submissions received from Veritas and Zimbabwe Prisons and Correctional Service.

4.0.General Submissions

Members of the public submitted that there is a need to upgrade and expand prisons and correctional facilities in order to mitigate overcrowding in prisons. It was emphasized that it is essential to distinguish inmates according to their ages because doing so will prevent younger inmates (18 years to 21 years) from being influenced by the older inmates with more criminal experience. In addition, it was highlighted that there is a need to utilize the industrial skills of inmates on various projects in order to generate income for prisoners and the country.

It was further suggested that correctional officers receive a minimum of three years of training and a minimum qualification of diploma be required for one to qualify as an officer. It was highlighted that the Bill has to be carefully checked for errors as it refers to section 109 of the Constitution in clause 183 which has no connection.

5.0.Specific submissions on the Bill

5.1.**Preamble**

Some members of the public submitted that although the Bill set out sections 227, 230, and 231 of the Constitution, there is a need for the Bill to also mention section 207(2) of the Constitution, which states that the security services, including the Prison and Correctional Service, are subject to the authority of the Constitution, Executive and Parliamentary oversight.

5.2.**Definitions**

It was submitted that the Bill is introducing new terms which in some instances have not been properly defined. Reference was made to the “Permanent Secretary of the Ministry”, which to some members of the public is incomplete as to which Ministry is being referred to. It was further highlighted that there is an attempt to define an open correctional facility yet there is an omission of the section which establishes it.

5.3. **Clause 4: Principles that guide the Service**

The public applauded this clause as it enhances the Constitutional mandate of the Zimbabwe Prisons and Correctional Service since the principles include the founding values of accountability and responsiveness.

5.4. **Clause 5: Functions of the Service**

The public highlighted that this clause introduces a clear mandate of the Service which includes safe and humane custody for inmates, healthcare and rehabilitation programs for inmates. It was submitted that the functions of the Service ought to have been exhaustive as they leave out other issues such as nutrition and access to safe drinking water. However, spelling out clearly the basic functions of the Service will ensure that the Service can be held accountable for any act or omission.

5.5. **Clauses 6, 7, and 8: Appointment, functions, the delegation of functions, retirement, and removal of the Commissioner General of Prisons**

Some members of the public highlighted that clause 6(1)(2) provides that the Commissioner General of the Service has to comply with policy directives from the Minister in terms of section 229(4) of the Constitution. It was their view that despite there being some resemblance of security of tenure, the Commissioner General holds office at the pleasure of the President in terms of section 320(2) of the Constitution.

5.6. **Clause 9: Power to appoint, promote, discharge, and demote by the Commission**

Some members of the public highlighted that the Constitution vests this power in the Prisons and Correctional Service Commission. However, the Bill proposes to divest power from the Commission to the President and the Commissioner General for commissioned correctional officers and non-commissioned correctional officers. It was, therefore, submitted that this clause is in violation of section 231(1) of the Constitution which gives the Commission the powers to appoint, promote, discharge and demote. It was their opinion that the Commission will only be a mere consulting body.

5.7. **Clause 19: Functions of the Commission**

The public noted that there is an additional function of the Commission to those provided for in the Constitution. It was highlighted that the Bill empowers the Commission to make inquiries or investigations as would commissioners under the Commissions of Inquiry Act [Chapter 10:07]. It was submitted that this extra function is couched correctly in that it fully empowers the Commission with the power to carry out unfettered inquiries and investigations as the Commissioner General will merely be consulted as it should be.

5.8. **Clause 24: Establishment of Correctional facilities**

The public noted that the Bill is introducing various facilities such as temporary prisons, correctional community centers, temporary correctional centers and open correctional facilities. Security levels for these facilities will be determined by the Commissioner General. Members of the public applauded the introduction of these facilities which seek to prepare inmates for reintegration into society. It was submitted that this is in line with the Constitutional mandate of the Service in section 227(1) of the Constitution, which is rehabilitation and re-integration of offenders.

5.9. **Clause 36: Use of weapons and Liability**

Some members of the public noted that this clause provides that correctional officers may use weapons in various specified instances. It was highlighted that the Bill goes on to clarify that when force is used it must be the minimum force necessary in the circumstances and such force should be to restrain and not to kill. The public applauded this clause as it goes further to exempt correctional officers from acts done in good faith. It was their view that this makes it clear that for any unlawful activities by correctional officers during the course of their duties, the Commissioner General and the Service will be held liable.

5.10. **Clause 46 and 55: Discipline of correctional officers**

The public submitted that in terms of the Bill, the discipline of correctional officers will continue to be the responsibility of the Commissioner General and not the Service. This provision was applauded for being the more efficient option. However, some members of the public questioned

the constitutionality of the clause, since the Service is mandated by section 231 of the Constitution to fix and regulate members' conditions of service and to ensure the well-being, good administration, and efficiency of the Service.

Some members of the public highlighted that the Bill states that disciplinary proceedings must be conducted in the English language and a correctional officer's level of comprehension of English will be assessed by the Board and appoint another correctional officer or person as an interpreter. It was submitted that this is unconstitutional as all administrative conduct must be substantively and procedurally fair as provided for in Section 68 of the Constitution. It was their view that the Board should not be empowered to assess the need for an interpreter, rather, a qualified interpreter should be made available on request by the correctional officer.

5.11. **Clause 83: Access to legal representation by inmates**

Some members of the public highlighted that this clause mandates the officer in charge to provide an inmate with a legal practitioner with adequate facilities to interview the inmate. However, it was submitted that this clause does not comply with the Constitution which requires that the consultations between an inmate and a legal practitioner of their choice must be held in private and that the inmate be informed of this right. It was further submitted that section 50(5)(b) of the Constitution is clear on the standard and this should be included in the Bill.

5.12. **Clause 91: Health care of inmates**

The public highlighted that the Bill will provide for various health rights including routine check-ups and preventative measures. It was submitted that the Bill will mandate a medical officer to give special regard and care to inmates on the death penalty by examining them every day and observing their mental condition. However, some members of the public argued that the death penalty should be abolished because it is a form of torture that affects the mental health of a person and that it is an expense to the taxpayers.

5.13. **Clause 139: Establishment of the state parole board**

Some members of the public were of the view that membership of the Board is not clear on numbers as it refers to a chairperson, 2 vice chairpersons, and *not more than* 5 other persons who

may not be officers of the service. It was therefore submitted that this leaves anyone to guess that it will be an 8-member Board. It was further submitted that the tenure of membership is not clear on re-appointment after a 5-year term; hence it will be better to clarify the tenure of the re-appointment.

5.14. **Clauses 143-148: Release on Parole**

Some members of the public were of the view that the exclusion of inmates on death sentence from eligibility for parole is discriminatory, especially considering the fact that those serving extended sentences such as murder will be eligible for parole. It was their submission that the Board will only recommend the release of a prisoner on death sentence where it involves a serious health hazard that may require treatment or if the inmate is of advanced age or with a disability. Other members of the public were of the view that not every inmate should be released on parole, and the Board should take adequate measures to evaluate behavior change because there is a risk of releasing criminals who will re-commit the same offenses.

5.15. **Clause 169: Correctional Board of Visitors**

The public applauded the introduction of this Board as a noble initiative that will go a long way in increasing accountability and inmates' welfare. However, it was recommended that the Correctional Board of Visitors' tenure be 5 years to match that of the Commission.

5.16. **Clause 171: Reports on Long-Term Inmates**

Some members of the public submitted that this clause is discriminatory as it does not apply to inmates on the death sentence. It was their view that this clause violates the right to equal protection and benefit of the law as mandated by s56(1) of the Constitution.

5.17. **Clause 182-183: Policy Directions and power to make regulations**

Some members of the public submitted that the directions and regulations are to be given and made by the Minister alone. It was their view that the Commission be involved in the decision-making process as provided for by the Constitution.

6.0.Committee observations

The Committee made the following observations:

6.1.There was a general consensus that the repeal of the Prisons Act was long overdue; hence the Bill was applauded for seeking to align the law with the Constitution and international standards.

6.2.There was a consensus that there is a need for government to put more effort and resources towards improving the basic living conditions of prisoners in Zimbabwe.

6.3.The public applauded the Government's effort towards the correctional aspect of the Service.

7.0. Committee Recommendations

The Committee, therefore, recommends the following:

7.1.Creation of a reserve force that will act as a pool where the Commissioner General may resort to in the event of a gap being discovered within the Service.

7.2. Extension of years of service beyond fifty years

7.3.For retired members of the Service to retain their ranks just like any other members of the Security Service

7.4.Members of the internal police be given powers to arrest any member of the service regardless of rank.

7.5.The Bill should clearly indicate what happens to the prohibited articles that would have been searched and seized from inmates.

7.6.The Bill should provide for protection of prisons cantonment areas.

8.0.Conclusion

The Bill makes a commendable effort in legislating for the incarceration, rehabilitation, and re-integration of offenders in line with international standards and trends. It provides a framework to facilitate the execution of the institution's mission to 'protect society from criminal elements through the incarceration, and rehabilitation of offenders for their successful reintegration into society while exercising reasonable, safe, secure and humane control'. The Committee, therefore,

believes that passing this Bill after consideration of the views of the people and their recommendations will help to shape the country's justice delivery system in line with the National Development Strategy 1.